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California moves to crack down on snacks like Flamin' Hot Cheetos, Takis

September 5, 2024 | Press Democrat, The (Santa Rosa, CA)
Section: State | 429 Words
OpenURL Link

The California Legislature passed a bill that prohibits schools from serving snacks that contain certain synthetic food dyes because, according to lawmakers, those dyes can cause behavioral and developmental problems in children.

Assembly Bill 2316, which was sent to Gov. Gavin Newsom's desk last week, would require snack-makers to remove the dyes from their products if they want them served in California schools. The additives are used in Flamin' Hot Cheetos, Takis and other colorful snacks.

Assemblymember Jesse Gabriel, a Democrat from Encino, sponsored the measure. In a news release, he said the issue was personal to him because of his own experience with attention-deficit/hyperactivity disorder, and he cited research from the California Environmental Protection Agency, which found that eating synthetic food dyes can worsen hyperactivity and other neurobehavioral problems in some kids.

"As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to hyperactivity and neurobehavioral harms," Gabriel said in the release. "This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these harmful additives."

Newsom needs to sign the bill before it becomes law.

The six synthetic dyes Gabriel's bill is targeting are yellow 5, yellow 6, blue 1, blue 2, green 3 and red 40. Those dyes can be found in snacks ranging from gummy worms to chocolate bars.

Gabriel was also the author of a bill that made headlines last year. Initially, Gabriel wanted to ban foods that contained titanium dioxide, an ingredient found in Skittles. However, that provision was eventually removed from Assembly Bill 418, and the resulting legislation prohibited the manufacture and sale of foods that contained four other common food additives.

In his news release, Gabriel stressed that his bill would not ban snacks like Flamin' Hot Cheetos and Twinkies outright: "AB 2316 would not ban specific foods or products, but rather encourage companies to make minor modifications to products sold in California and could help prompt a nationwide transition to safer alternative ingredients." Kids would also be free to bring such snacks with them to school.

Gabriel said his bill is the first of its kind in the nation. The legislation has been endorsed by California State Superintendent of Public Instruction Tony Thurmond.

"Healthy, safe school meals are foundational to our students' wellness and ability to learn," Thurmond said in the release. "As someone who depended on school meals growing up, I know how critical it is that our children receive food at school that is nutritious and is never harmful."

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- **Citation (apa Style)**
  California moves to crack down on snacks like Flamin' Hot Cheetos, Takis. (2024, September 5).*Press Democrat, The (Santa Rosa, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19B6B98A0BBDF758.